

PART II.

Session and Chapter.	Short Title.	Extent of Repeal.
8 & 9 Geo. 5. c. 40.	The Income Tax Act, 1918.	Paragraph (3) of Rule 8 of No. V. in Schedule A.
9 & 10 Geo. 5. c. 32.	The Finance Act, 1919 -	Section nineteen.
10 & 11 Geo. 5. c. 18.	The Finance Act, 1920 -	Section twenty-nine.

CHAPTER 18.

An Act to provide that a woman who wilfully causes the death of her newly-born child may, under certain conditions, be convicted of infanticide. [20th July 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Conviction
for infanti-
cide in
certain cases.

1.—(1) Where a woman by any wilful act or omission causes the death of her newly-born child, but at the time of the act or omission she had not fully recovered from the effect of giving birth to such child, and by reason thereof the balance of her mind was then disturbed, she shall, notwithstanding that the circumstances were such that but for this Act the offence would have amounted to murder, be guilty of felony, to wit of infanticide, and may for such offence be dealt with and punished as if she had been guilty of the offence of manslaughter of such child.

(2) Where upon the trial of a woman for the murder of her newly-born child, the jury are of opinion that she by any wilful act or omission caused its death, but that at the time of the act or omission she had not fully recovered from the effect of giving birth to such child, and that by reason thereof the balance of her mind was then disturbed, the jury may, notwithstanding that the circumstances were such that but for the provisions of this Act they might have returned a verdict of murder, return in lieu thereof a verdict of infanticide.

(3) Nothing in this Act shall affect the power of the jury upon an indictment for the murder of a newly-born child to return a verdict of manslaughter, or a verdict of guilty but insane, or a verdict of concealment of birth, in pursuance of section sixty of the Offences against the Person Act, 1861. 24 & 25 Vict.
c. 100. s. 60.

(4) The said section sixty shall apply in the case of the acquittal of a woman upon indictment for infanticide as it applies upon the acquittal of a woman for murder, and upon the trial of any person over the age of sixteen for infanticide it shall be lawful for the jury, if they are satisfied that the accused is guilty of an offence under section twelve of the Children's Act, 1908, to find the accused guilty of such an offence, and in that case that section shall apply accordingly. 8 Edw. 7.
c. 67.

2.—(1) This Act may be cited as the Infanticide Act, 1922. Short title
and extent.

(2) This Act shall not extend to Scotland or Ireland.

CHAPTER 19.

An Act to repeal section two of the Gaming Act, 1835. [20th July 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Section two of the Gaming Act, 1835 (which makes money paid to the indorsee, holder, or assignee of securities given for consideration arising out of certain gaming transactions recoverable from the person to whom the securities were originally given), is hereby repealed. No trustee, executor, or other person acting in a representative or fiduciary capacity shall be under any obligation to make or enforce any claim under the said section in respect of any transaction completed before the passing of this Act, or be liable for any breach of duty by reason of any failure to do so. No action for the recovery of money under the said section shall be entertained in any court. Repeal of
5 & 6 Wm. 4.
c. 41. s. 2.

2. This Act may be cited as the Gaming Act, 1922. Short title.
